

STATE OF NEW YORK

8334--A

Cal. No. 301

2025-2026 Regular Sessions

IN SENATE

June 3, 2025

Introduced by Sen. GOUNARDES -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Insurance in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the insurance law and the social services law, in relation to insurance reimbursement for vaccination for severe acute respiratory syndrome coronavirus 2

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Clause (iii) of subparagraph (B) of paragraph 17 of
2 subsection (i) of section 3216 of the insurance law, as amended by chap-
3 ter 219 of the laws of 2011, is amended to read as follows:

4 (iii) necessary immunizations, as determined by the superintendent in
5 consultation with the commissioner of health, consisting of at least
6 adequate dosages of vaccine against diphtheria, pertussis, severe acute
7 respiratory syndrome coronavirus 2, tetanus, polio, measles, rubella,
8 mumps, haemophilus influenzae type b and hepatitis b, which meet the
9 standards approved by the United States public health service for such
10 biological products.

11 § 2. Clause (iii) of subparagraph (B) of paragraph 8 of subsection (l)
12 of section 3221 of the insurance law, as amended by chapter 219 of the
13 laws of 2011, is amended to read as follows:

14 (iii) necessary immunizations, as determined by the superintendent in
15 consultation with the commissioner of health, consisting of at least
16 adequate dosages of vaccine against diphtheria, pertussis, severe acute
17 respiratory syndrome coronavirus 2, tetanus, polio, measles, rubella,
18 mumps, haemophilus influenzae type b and hepatitis b, which meet the
19 standards approved by the United States public health service for such
20 biological products.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13303-02-6

1 § 3. Subparagraph (C) of paragraph 2 of subsection (j) of section 4303
2 of the insurance law, as amended by chapter 219 of the laws of 2011, is
3 amended to read as follows:

4 (C) necessary immunizations, as determined by the superintendent in
5 consultation with the commissioner of health, consisting of at least
6 adequate dosages of vaccine against diphtheria, pertussis, severe acute
7 respiratory syndrome coronavirus 2, tetanus, polio, measles, rubella,
8 mumps, haemophilus influenzae type b and hepatitis b, which meet the
9 standards approved by the United States public health service for such
10 biological products.

11 § 4. Paragraph (v) of subdivision 2 of section 365-a of the social
12 services law, as added by section 4 of part B of chapter 58 of the laws
13 of 2010, is amended to read as follows:

14 (v) administration of vaccinations in accordance with regulations
15 issued by the commissioner, utilizing generally accepted medical stand-
16 ards and taking into consideration recommendations of the American Acad-
17 emy of Pediatrics, the American Academy of Family Physicians, the Ameri-
18 can College of Obstetricians and Gynecologists, the American College of
19 Physicians, the Advisory Committee on Immunization Practices, or other
20 similar nationally or internationally recognized scientific organiza-
21 tions, consisting of at least adequate dosages of vaccine against
22 diphtheria, pertussis, severe acute respiratory syndrome coronavirus 2,
23 tetanus, polio, measles, rubella, mumps, haemophilus influenzae type b
24 and hepatitis b, in a pharmacy by a certified pharmacist within [~~his or~~
25 ~~her~~] their scope of practice.

26 § 5. This act shall take effect on the first of January after it shall
27 have become a law and shall apply to any contract entered into, deliv-
28 ered, amended or modified on or after the date it takes effect.